



Education (Scotland) Act 1969

1969 CHAPTER 49

An Act to amend the law relating to education in Scotland, and for connected purposes.

[25th July 1969]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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PROVISION OF EDUCATION BY EDUCATION AUTHORITIES

1.—(1) In the Education (Scotland) Act 1962 (hereafter in this Act called “the principal Act”), for sections 1 to 3 (provision of educational facilities by education authorities) there shall be substituted the following sections:—

“Duty of education authorities to secure provision of education.

1.—(1) It shall be the duty of every education authority to secure that there is made for their area adequate and efficient provision of school education and further education.

(2) In this Act—

(a) ‘school education’ means progressive education appropriate to the requirements of pupils in attendance at schools, regard being had to the age, ability and aptitude of such pupils, and includes—

(i) activities in schools and classes (hereafter in this Act called ‘nursery schools’ and ‘nursery classes’), being activities of a kind suitable in the ordinary case for pupils who, for the purpose

education authorities.
1962 c. 47

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of school attendance, are under school age ;

(ii) special education ;

(iii) the teaching of Gaelic in Gaelic speaking areas ; and

(b) ' further education ' has the meaning assigned to it by section 4 of this Act.

(3) Every education authority—

(a) shall have power to secure for their area, and

(b) without prejudice to the duty imposed on them by subsection (1) above, shall be under a duty to secure for pupils in attendance at schools in their area,

the provision of adequate facilities for social, cultural and recreative activities and for physical education and training.

Secretary of State may prescribe standards, etc., for education authorities.

2. The Secretary of State may make regulations prescribing the standards and general requirements to which every education authority shall conform in discharging their functions under section 1 of this Act.

Fees not to be charged in public schools, etc.: exceptions.

3. School education and compulsory further education provided by an education authority shall be so provided without payment of fees, but an education authority shall have (and shall be deemed always to have had) power to charge fees in respect of the use of some or all of—

(a) any facilities for voluntary further education provided by them ;

(b) any facilities provided by them under section 1(3) of this Act.

Duty of education authorities to provide child guidance service.

3A. It shall be the duty of every education authority to provide for their area a child guidance service in child guidance clinics or elsewhere, and the functions of that service shall include—

(a) the study of handicapped, backward and difficult children ;

(b) the giving of advice to parents and teachers as to appropriate methods of education and training for such children ;

(c) in suitable cases, the provision of special education for such children in child guidance clinics ;

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1968 c. 49.

- (d) the giving of advice to a local authority within the meaning of the Social Work (Scotland) Act 1968 regarding the assessment of the needs of any child for the purposes of any of the provisions of that or any other enactment."

(2) Any reference in any enactment or other instrument (including this Act and, unless the contrary intention appears, any enactment or other instrument passed or made after the commencement of this Act) to—

- (a) primary education shall be construed as a reference to school education of a kind which is appropriate in the ordinary case to the requirements of pupils who have not attained the age of twelve years ;
- (b) secondary education shall be construed as a reference to school education of a kind which is appropriate in the ordinary case to the requirements of pupils who have attained that age ;

and any reference in any such enactment or other instrument as aforesaid to primary or secondary schools or departments or classes shall be construed accordingly.

(3) Notwithstanding the provisions of section 3 of the principal Act (as set out in subsection (1) above)—

- (a) the power to charge fees in public schools conferred on education authorities by the proviso to section 1(3) of that Act (as originally enacted) shall continue to be available to, and may be exercised by, education authorities after the commencement of this Act, so, however, that this paragraph shall cease to have effect on 1st August 1970 ;

(b) where—

- (i) an education authority have, at any time in the year ending with 1st August 1970, provided school education in any school under their management for an outwith-area pupil and have charged fees in respect of that education, and

- (ii) the said pupil is on 1st October 1970 in attendance at a class in a secondary school, or in the secondary department of a school, under the management of that education authority,

the said education authority may charge fees in respect of any school education provided by them for that pupil in any school under their management at any time after 1st August 1970 when he is an outwith-area pupil:

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Provided that the education authority shall not have power under this paragraph to charge fees in respect of education provided by them for any pupil if a contribution in respect of such provision is payable to them by another education authority.

In this subsection "outwith-area pupil" means, in relation to any education authority, a pupil who is not deemed to belong for the purposes of section 24 of the principal Act to the area of that authority.

Provision of
museums by
education
authorities.

2.—(1) An education authority (other than the town council of a burgh being a county of a city) may provide and maintain museums within their area, and shall have power—

- (a) to acquire any objects which, in their opinion, it is desirable to include in a collection contained in a museum maintained by them under this section ;
- (b) to lend any object vested in them and comprised in any such collection, on such terms and conditions as they think fit, to any person for any purpose ;
- (c) subject to subsection (3) below, to transfer any object vested in them and comprised in any such collection to the governing body of a museum maintained by a person other than the education authority, for the purpose of being included in a collection contained in that museum ;
- (d) subject to subsection (3) below, to sell, exchange, give away or otherwise dispose of any object vested in them and comprised in a collection contained in a museum maintained by them under this section, if for any reason that object is not, in their opinion, required for retention in any such collection ;
- (e) to co-operate with any other education authority or the town council of any burgh in the provision or maintenance of a museum ;
- (f) generally to do all such things as they may consider necessary or expedient for or in connection with the provision and maintenance of museums under this section.

(2) An education authority may, if they think fit, make such charge as they consider reasonable for admission to a museum maintained by them under this section, and in determining whether, and in what manner, to exercise their powers under this subsection in relation to any museum, an authority shall take into account the need to secure that the museum plays its full part in the promotion of education in their area, and shall have particular regard to the interests of children and students.

(3) Where an object has become vested in an education authority subject to any trust or condition— PART

- (a) that object shall, on being transferred under subsection (1)(c) above, be subject to the like trust or condition in the hands of the transferee ;
- (b) the powers conferred by subsection (1)(d) above shall not be exercisable in relation to that object in a manner inconsistent with that trust or condition.

3. For subsection (1) of section 19 of the principal Act (requirements as to premises of educational establishments) there shall be substituted the following subsection :—

“(1) The Secretary of State may make regulations prescribing standards and general requirements which are to apply to the premises and equipment of educational establishments under the management of education authorities, and regulations under this subsection may prescribe different standards or requirements in respect of such different classes (however defined) of educational establishment as may be specified in the regulations.”

4. In section 20 of the principal Act (acquisition of land and execution of works), after subsection (1) there shall be inserted the following subsection :—

“(1A) An education authority shall not—

- (a) acquire any land for use as the site of an educational establishment, or of playing fields to be used in connection with such an establishment, or of an extension to any such establishment or playing fields (whether contiguous to the establishment or playing fields or detached therefrom), or
- (b) except in such cases as may be prescribed by regulations made by the Secretary of State, cause or permit works to be commenced for the erection of any building on land acquired by them for any such use as aforesaid, or for the extension or alteration of any building on land so acquired by them,

without the approval of the Secretary of State given in writing before such acquisition or commencement, as the case may be, and—

- (i) an application by an education authority to the Secretary of State for an approval under this subsection shall be in such form, and shall contain such particulars, as may be prescribed, and

Power of Secretary of State to prescribe standards for premises, etc., of educational establishments.
Amendment of s. 20 of Education (Scotland) Act 1962.

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- (ii) the Secretary of State may give his approval unconditionally, or subject to such conditions as he may think fit."

Discontinuance
of educational
establish-
ments.

5.—(1) In section 22 of the principal Act (discontinuance of educational establishments), after subsection (1) there shall be inserted the following subsections:—

"(1A) Where an education authority propose to discontinue any educational establishment under their management, or to discontinue the use, in connection with such an educational establishment, of any part of that establishment, or of any building or part of a building ancillary to the establishment, and land forming the site, or part of the site, of that establishment or of that part of the establishment or of that building or part of a building, as the case may be, is subject to—

1841 c. 38.

- (a) the third proviso to section 2 of the School Sites Act 1841 (which provides that, if any land granted in accordance with the provisions of that section ceases to be used for the purposes mentioned in that Act, that land shall revert to the grantor), or
(b) any condition of a similar nature in any Act, deed or other instrument,

the Secretary of State, on the application in that behalf of the education authority, may by order direct that the said proviso or condition shall not have effect in relation to that land:

Provided that such a direction shall not be given in relation to any land unless the Secretary of State is satisfied either—

- (i) that the person to whom the land would revert in accordance with the said proviso or condition cannot after due inquiry be found, or
(ii) that, if that person can be found, he has consented to relinquish his rights in relation to the land under the said proviso or condition, and that, if he has consented to do so in consideration of the payment of a sum of money to him, adequate provision can be made for the payment to him of that sum.

(1B) A direction given by the Secretary of State under subsection (1A) above in relation to any land may make provision for the payment out of the proceeds of any sale of that land of any sum which is payable to any person in consideration of the relinquishment of his rights in relation to the land under the said proviso or condition."

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(2) Section 119(3) of the principal Act (certain school land to be deemed to be an educational endowment) shall cease to have effect in so far as it relates to land forming the site or part of the site of an educational establishment under the management of an education authority or of any building ancillary to such an educational establishment.

6. For sections 25 and 26 of the principal Act (contributions by education authorities to schools, universities, etc.) there shall be substituted the following section:—

“Power of education authorities to make payments to persons providing education, etc.

25.—(1) An education authority may, for the purpose of promoting education generally, or of improving the facilities for education available, or the education provided, for their area in particular, make payments—

- (a) to another education authority,
- (b) to a university, or to the managers of a hostel or other residence used by students attending a university,
- (c) with the approval of the Secretary of State, to the managers of any school (other than a public school),
- (d) to the managers of any educational establishment (other than a school),
- (e) to any other person providing education or educational services,
- (f) to any person to assist the carrying out of educational research,

and any such payment may be made either unconditionally or subject to such conditions as may be agreed between the parties.

(2) Notwithstanding paragraph (c) of subsection (1) above, the approval of the Secretary of State shall not be required for the making by an education authority, by virtue of the power conferred on them by that paragraph, of payments to the managers of schools (other than public schools) in order to secure the admission thereto and education therein free of charge of pupils nominated by the education authority.

(3) Where—

- (a) it is agreed between an education authority and the managers of any educational establishment, as a condition of the making of payments under subsection (1) above, that

Power of education authorities to make payments to persons providing education, etc.

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the authority shall have representation or additional representation on the governing body of that establishment, but

- (b) the provisions of any trust deed or other instrument relating to the establishment will not, unless they are modified, permit provision to be made for such representation or additional representation as aforesaid,

the Secretary of State may, on being requested to do so by the managers of the establishment, by order make such modifications in the provisions of that trust deed or other instrument as may be necessary to enable provision to be made for such representation or additional representation, as the case may be, as aforesaid, and any such trust deed or other instrument shall, so long as the said payments continue to be made, have effect subject to any modifications so made."

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RIGHTS AND DUTIES OF PARENTS AND FUNCTIONS OF EDUCATION
AUTHORITIES IN RELATION TO INDIVIDUAL PUPILS

Transfer
schemes.

7. For section 30 of the principal Act (transfer schemes) there shall be substituted the following section:—

"Transfer
schemes.

30. An education authority may at any time, and shall if and when so required by the Secretary of State, prepare and submit for his approval under section 70 of this Act a scheme or a revised scheme (hereafter in this Act called a 'transfer scheme') relating to the schools under their management, and a transfer scheme shall—

- (a) set out the arrangements which the education authority propose to adopt in relation to the transfer of pupils from one stage of school education and their admission to a subsequent stage of school education, and
- (b) fix a single date (to be known as a 'transfer date') on which such transfer shall take place in every year:

Provided that the Secretary of State may, if in the circumstances of any particular case he thinks it expedient to do so, approve a scheme which fixes more than one transfer date."

8. In section 33(1) of the principal Act (under which the Secretary of State may require an education authority to fix for their area two or more fixed dates for commencing school attendance and two school leaving dates), for the words from "Provided that" to the end there shall be substituted the following words:—

"Provided that—

- (i) if in relation to the area of any education authority the Secretary of State is satisfied, either of his own accord or on the application of that authority, that, having regard to all the circumstances, it is desirable that a single date for commencing school attendance, or a single school leaving date, should be fixed for that area, he may require the authority to fix for the area a single date for commencing school attendance or, as the case may be, a single school leaving date ;
- (ii) an education authority may, in pursuance of any requirement under paragraph (a) or paragraph (b) of this subsection or paragraph (i) of this proviso, fix different dates for different schools in their area."

9. After section 58 of the principal Act there shall be inserted the following section:—

"Dental inspection and supervision of pupils and young persons.

58A.—(1) It shall be the duty of an education authority to provide for the dental inspection, at appropriate intervals, and for the dental supervision of all pupils in attendance at any school under their management and of all young persons in attendance at any junior college or other educational establishment under their management, and an education authority shall have power to provide also for the dental inspection and supervision of other pupils in attendance at any educational establishment under their management who desire such inspection and supervision.

(2) For the purpose of securing the proper dental inspection of the pupils and young persons for whom it is their duty under this section to provide such inspection, an education authority may require the parent of any pupil in attendance at any school under their management to submit the pupil for dental inspection in accordance with arrangements made by the authority, and may require any young person in attendance at any junior college or other educational establishment under their management to submit himself for dental inspection.

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Power of Secretary of State to require education authority to fix a single school commencement or leaving date.

Dental inspection and supervision of pupils and young persons.

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(3) If any person fails without reasonable excuse to comply with a requirement made by an education authority under subsection (2) above, he shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding ten pounds."

Handicapped children.

10. For sections 62 to 66 of the principal Act (handicapped children) there shall be substituted the following sections:—

"Classification and educational arrangements.

62. The Secretary of State may make regulations defining the several categories of pupils requiring special education and making provision as to the special educational arrangements appropriate for pupils of each category.

Functions of education authority in relation to ascertainment of handicapped children.

63.—(1) An education authority—

(a) shall have power, as regards children in their area who have not attained the age of five years, and

(b) shall be under a duty, as regards children in their area who have attained that age,

to ascertain—

(i) which of those children require special education, and

(ii) which of those children are suffering from a disability of such a nature or to such an extent as to make them unsuitable for education or training either by ordinary methods of education or by special education.

(2) It shall be the duty of an education authority to disseminate in their area information as to the importance to any child who requires special education of the early ascertainment of his need, and of the opportunity for medical examination and psychological examination available under the following provisions of this Act.

Examination of children.

64.—(1) It shall not be lawful for an education authority to decide that a child requires special education, or that a child is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act, unless that child has undergone a medical examination and a psychological examination for the purpose of affording to the authority advice

as to whether or not they ought so to decide ; and accordingly, before so deciding in the case of any child, an education authority shall—

- (a) invite the parent of that child to submit the child for a medical examination and a psychological examination for the said purpose, and
- (b) (in the case of a child who has attained the age of five years) if the parent fails to submit the child as aforesaid, by notice in writing served upon the parent require him to submit the child for a medical examination and a psychological examination for the said purpose.

(2) A parent who submits his child for a medical examination under subsection (1) above shall be entitled to be present at that examination if he so desires.

(3) If any parent on whom a notice has been served under paragraph (b) of subsection (1) above fails without reasonable excuse to comply with the requirements of the notice, he shall be guilty of an offence and liable on conviction by a court of summary jurisdiction to a fine not exceeding ten pounds.

(4) A notice served under paragraph (b) of subsection (1) above in respect of any child shall—

- (a) state that the purpose of the examinations is to afford to the education authority advice as to whether or not they ought to decide that that child requires special education or is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act ;
- (b) specify the times and places at which the examinations will be held ;
- (c) inform the parent of his right to be present at the medical examination if he so desires ;
- (d) inform the parent of the penalty to which he will be liable if he fails without reasonable excuse to comply with the requirements of the notice.

(5) If the parent of any child requests the education authority for the area to cause that child to be

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medically and psychologically examined for the purpose of affording to the authority advice as to whether or not they ought to decide that the child requires special education or is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act, the authority shall comply with the request unless in their opinion the request is unreasonable.

Ascertainment by education authority of children requiring special education.

65.—(1) An education authority shall take into consideration—

- (a) the advice given to them with respect to any child in consequence of the medical and psychological examinations undergone by that child under section 64 of this Act ;
- (b) the views of the parent of the child, so far as these can be obtained ;
- (c) if the child has been at any time in attendance at any school, any reports or other information with respect to the child which they are able to obtain from the records of the school or from teachers at the school ;
- (d) any other reports or information which they are able to obtain with respect to the ability or aptitude of the child ;

and the education authority may thereafter decide that the child requires special education, and if they so decide shall—

- (i) forthwith give to the parent of the child notice in writing of their decision, and
- (ii) thereafter ensure that any education provided by them for the child is special education.

(2) A notice given by an education authority to a parent in pursuance of paragraph (i) of subsection (1) above shall inform the parent of his right under subsection (1) of section 66A of this Act to require the authority to issue to him a statement of the reasons for their decision, and of his right under that subsection to refer the case to the Secretary of State.

Review by
education
authority
of cases
of children
requiring
special
education.

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66.—(1) It shall be the duty of an education authority to keep generally under consideration the cases of all children in their area who the authority have decided require special education, and—

(a) when in the discharge of that duty in relation to such a child the education authority think it expedient, or

(b) if the education authority are at any time requested to do so by notice in writing given to them by the parent of such a child,

the education authority shall review their decision that the said child requires special education:

Provided that the parent of a child who the education authority have decided requires special education shall not, by virtue of paragraph (b) above, be entitled to request the authority to review their decision earlier than the expiry of the period of 12 months from the date of that decision or more often than once in any period of 12 months subsequent to the expiry of the first-mentioned period.

(2) For the purpose of obtaining advice in connection with a review, under subsection (1) above, of their decision that a child requires special education, an education authority may—

(a) invite the parent of that child to submit the child for a medical examination and a psychological examination, and

(b) (in the case of a child who has attained the age of five years) if the parent fails to submit the child as aforesaid, by notice in writing served upon the parent require him to submit the child for a medical examination and a psychological examination.

(3) Subsections (2) to (4) of section 64 of this Act (examination of child) shall apply for the purposes of this section as they apply for the purposes of that section, with the substitution, for the references to subsection (1) of that section, of references to subsection (2) of this section, and subject to any other necessary modifications.

(4) In reviewing, under subsection (1) above, their decision that a child requires special education an education authority shall take into consideration—

(a) the advice given to them with respect to that child in consequence of medical and

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psychological examinations undergone by the child ;

- (b) if either the review is being carried out in pursuance of a request made to them by the parent of the child by virtue of paragraph (b) of subsection (1) above or the parent was invited, under paragraph (a) of subsection (2) above, to submit the child for medical and psychological examination in connection with the review, the views of the parent of the child, so far as these can be obtained ;
- (c) if the child has been at any time in attendance at any school, any reports or other information with respect to the child which they are able to obtain from the records of the school or from teachers at the school ;
- (d) any other reports or information which they are able to obtain with respect to the ability or aptitude of the child ;

and the education authority shall thereafter either—

- (i) revoke the said decision, in which case they shall forthwith give to the parent of the child notice in writing of its revocation, and their duty to ensure that any education provided by them for the child is special education shall thereupon cease ; or
- (ii) determine not to revoke the decision, in which case, if either the review was carried out in pursuance of a request made to them by the parent of the child by virtue of paragraph (b) of subsection (1) above or the parent was invited, under paragraph (a) of subsection (2) above, to submit the child for medical and psychological examination in connection with the review, they shall forthwith give to the parent such notice of their determination as is mentioned in subsection (5) below ; or
- (iii) subject to subsection (6) below, revoke the decision but decide that the child is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act and

that a report to the local authority should be issued by them under section 66B of this Act with respect to the child.

(5) A notice given by an education authority to a parent in pursuance of paragraph (ii) of subsection (4) above shall be in writing and shall inform the parent of his right under subsection (1) of section 66A of this Act to require the authority to issue to him a statement of the reasons for their determination, and of his right under that subsection to refer the case to the Secretary of State.

(6) An education authority shall not make, in relation to any child, a determination under paragraph (iii) of subsection (4) above unless—

- (a) the child has attained the age of two years at the date of the determination, and
- (b) the review was carried out in pursuance of paragraph (a) of subsection (1) above, and
- (c) the child has undergone a medical examination and a psychological examination in connection with the review.

1968 c. 49. (7) In this section and in sections 66B, 66C, 66D and 66E of this Act the expression "local authority" shall have the same meaning as in the Social Work (Scotland) Act 1968:

1947 c. 27. Provided that until section 1(4) of the said Act of 1968 comes into operation the expression "local authority" shall mean a local health authority within the meaning of the National Health Service (Scotland) Act 1947 (including a joint committee or board constituted under section 20 of that Act).

Reference to
Secretary
of State of
cases under
ss. 65 and
66.

66A.—(1) Where an education authority—

- (a) decide under section 65 of this Act that a child requires special education, or
- (b) determine under section 66 of this Act not to revoke a decision made by them that a child requires special education and give to the parent of that child, in pursuance of paragraph (ii) of section 66(4) of this Act, notice in writing of their determination,

the education authority shall, if so required by the parent of the child, issue to the parent a statement of the reasons for their decision or determination, as the case may be, and where such a statement is

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so issued the parent may, if he is aggrieved by the decision or determination—

(i) in the case of a decision, within the period of twenty-eight days from the date on which the statement was issued or such longer period therefrom as the Secretary of State may, either during or after the expiry of the twenty-eight days, allow,

(ii) in the case of a determination, within the said period of twenty-eight days,

refer the case to the Secretary of State.

(2) On any reference under subsection (1) above the Secretary of State shall either confirm or refuse to confirm the decision or determination of the education authority.

(3) Where under subsection (2) above the Secretary of State refuses to confirm the decision or determination of an education authority with respect to any child, the authority shall be deemed to have revoked their decision that that child requires special education, and—

(a) they shall forthwith give to the parent of the child notice in writing of the revocation of the decision, and

(b) their duty to ensure that any education provided by them for the child is special education shall thereupon cease.

Ascertainment by education authority of children unsuitable for education: reference to Secretary of State.

66B.—(1) An education authority may, after considering, in accordance with section 65(1) of this Act, the advice and any reports or other information received by them with respect to any child who has attained the age of two years, and the views of the parent of that child (so far as these can be obtained), decide that the child is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act.

(2) Where an education authority decide as aforesaid in relation to any child, either under subsection (1) above or under paragraph (iii) of section 66(4) of this Act, they shall, subject to the following provisions of this section, issue to the local authority a report of their decision, together with a copy of any

document which they took into consideration in making their decision.

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(3) Before issuing a report under this section with respect to any child, an education authority shall give to the parent of that child notice in writing—

- (a) stating their intention to issue such a report with respect to the child ;
- (b) setting out the functions of the local authority with respect to the making of arrangements for the treatment, care and training of the child in the event of the report's being issued ;
- (c) specifying (if they are known to the education authority) the arrangements proposed to be made by the local authority for the discharge of those functions ;
- (d) informing the parent of his right under the following provisions of this section to require the authority to issue to him a statement of the reasons for their decision in relation to the child, and of his right under those provisions to refer the case to the Secretary of State ;

and the education authority shall not issue such a report with respect to the child—

- (i) earlier than the expiry of the period of twenty-eight days from the date on which the notice was served,
- (ii) if within the said period the parent requires them, under subsection (4) below, to issue to him a statement of the reasons for their decision in relation to the child, earlier than the expiry of the period of twenty-eight days from the date on which that statement was issued,
- (iii) if within either of the said periods the parent refers the case to the Secretary of State, except by the direction of the Secretary of State.

(4) Where an education authority have given notice to the parent of any child in pursuance of subsection (3) above, they shall, if so required by the parent within the period of twenty-eight days from the date on which the notice was served, issue

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to the parent a statement of the reasons for their decision in relation to the child, and the parent may, if he is aggrieved by the decision—

- (a) where such a statement has been so required, within the period of twenty-eight days from the date on which that statement was issued,
- (b) where such a statement has not been so required, within the period of twenty-eight days from the date on which the said notice was served,

refer the case to the Secretary of State.

(5) On any reference under subsection (4) above the Secretary of State shall either—

- (a) direct the education authority to issue to the local authority a report under this section with respect to the child in question ; or
- (b) refuse to direct the education authority to issue such a report ; or
- (c) in the case of a child who the education authority have decided under subsection (1) above is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act, refuse to direct the authority to issue such a report but substitute for that decision a decision that the child requires special education ; or
- (d) in the case of a child in relation to whom the education authority have decided as aforesaid under paragraph (iii) of section 66(4) of this Act, refuse to direct the authority to issue such a report but confirm their determination under that paragraph so far as relating to the revocation of the decision that the child requires special education.

(6) Where under paragraph (a) of subsection (5) above the Secretary of State directs an education authority to issue to the local authority a report under this section with respect to any child, the education authority shall forthwith comply with that direction.

(7) Where under paragraph (b) of subsection (5) above the Secretary of State refuses to direct an education authority to issue such a report with respect to any child, being a child who the authority have decided, under paragraph (iii) of section 66(4) of this Act, is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act, the authority shall be deemed not to have revoked their decision that the child requires special education and shall continue to ensure that any education provided by them for the child is special education.

(8) Where under paragraph (c) of subsection (5) above the Secretary of State substitutes for any decision of an education authority in relation to any child a decision that the child requires special education, the authority shall be deemed to have decided under section 65(1) of this Act that the child requires special education and shall thereafter ensure that any education provided by them for the child is special education.

(9) An education authority shall as soon as practicable give to the parent of any child notice in writing of any decision made by the Secretary of State in relation to that child on a reference under subsection (4) above and of the effect of that decision.

Review by
education
authority
of cases
of children
unsuitable
for
education.

66C.—(1) An education authority shall, if they are at any time requested to do so by notice in writing given to them—

- (a) by the parent of a child with respect to whom the education authority have issued a report under section 66B of this Act, or
- (b) by the local authority, as regards such a child, or
- (c) by any authority or body responsible for the management of an institution in which such a child is under care,

review their decision that the said child is suffering from a disability of such a nature or to such an extent as is mentioned in paragraph (ii) of section 63(1) of this Act:

Provided that the parent of a child with respect to whom the education authority have issued a report under section 66B of this Act shall not, by

PART II

virtue of paragraph (a) above, be entitled to request the education authority to review their decision earlier than the expiry of the period of 12 months from the date of that report or more often than once in any period of 12 months subsequent to the expiry of the first-mentioned period.

(2) Where an education authority review, under subsection (1) above, their decision in relation to any child, they shall, for the purpose of obtaining advice in connection with that review—

- (a) invite the parent of that child to submit the child for a medical examination and a psychological examination, and
- (b) if the parent fails to submit the child as aforesaid, by notice in writing served upon the parent require him to submit the child for a medical examination and a psychological examination.

(3) Subsections (2) to (4) of section 64 of this Act (examination of child) shall apply for the purposes of this section as they apply for the purposes of that section, with the substitution, for the references to subsection (1) of that section, of references to subsection (2) of this section, and subject to any other necessary modifications.

(4) In reviewing, under subsection (1) above, their decision in relation to any child an education authority shall take into consideration—

- (a) the advice given to them with respect to that child in consequence of medical and psychological examinations undergone by the child ;
- (b) any reports or other information with respect to the child which they are able to obtain from the parent of the child, or from the local authority, or from any authority or body responsible for the management of an institution in which the child is under care, or from any other person ;

and the education authority shall thereafter either—

- (i) cancel the report issued by them under section 66B of this Act with respect to the child, in which case they shall forthwith give notice in writing of its cancellation to the parent of the child, to the local

PART II

authority and to any authority or body responsible for the management of an institution in which the child is under care ; or

- (ii) cancel the said report but decide that the child requires special education, in which case they shall forthwith give notice in writing of their determination to the persons mentioned in paragraph (i) above and shall thereafter ensure that any education provided by them for the child is special education ; or
- (iii) determine not to cancel the report, in which case they shall forthwith give notice in writing of their determination to the persons mentioned in paragraph (i) above.

(5) A notice given by an education authority to a parent in pursuance of paragraph (ii) or paragraph (iii) of subsection (4) above shall inform the parent of his right under subsection (1) of section 66D of this Act to require the education authority to issue to him a statement of the reasons for their determination, and of his right under that subsection to refer the case to the Secretary of State.

Reference
to Secretary
of State of
cases under
s. 66C.

66D.—(1) Where an education authority, acting under section 66C of this Act—

- (a) cancel a report issued by them under section 66B of this Act with respect to any child, but decide that the child requires special education, or
- (b) determine not to cancel a report issued by them under the said section 66B with respect to any child,

the education authority shall, if so required by the parent of the child, issue to the parent a statement of the reasons for their determination, and where such a statement is so issued the parent may, if he is aggrieved by the determination, within the period of twenty-eight days from the date on which the statement was issued refer the case to the Secretary of State.

(2) On any reference under subsection (1) above the Secretary of State shall either—

- (a) confirm the determination of the education authority, or

PART II

- (b) refuse to confirm their determination, or
- (c) (where the education authority have determined not to cancel the report in question) refuse to confirm the determination of the education authority and substitute therefor a determination that the report should be cancelled but that the child to whom the report relates requires special education.

(3) Where under paragraph (b) of subsection (2) above the Secretary of State refuses to confirm the determination of an education authority with respect to any child, the education authority shall be deemed to have cancelled the report issued by them under section 66B of this Act with respect to that child, and they shall forthwith give notice in writing of its cancellation to the persons mentioned in paragraph (i) of section 66C(4) of this Act.

(4) Where under paragraph (c) of subsection (2) above the Secretary of State refuses to confirm the determination of an education authority with respect to any child and substitutes therefor a determination that the report in question should be cancelled but that the child to whom the report relates requires special education, the education authority shall be deemed to have cancelled the said report but to have decided that the child requires special education, and they shall forthwith give notice in writing to this effect to the persons mentioned in paragraph (i) of section 66C(4) of this Act and shall thereafter ensure that any education provided by them for the child is special education.

Children who may benefit by local authority services after leaving school.

66E.—(1) Where an education authority decide that a child to whom this section applies is suffering from mental deficiency to such an extent that he may, on leaving school, benefit from services which it is the function of a local authority to provide or secure the provision of, it shall be the duty of the education authority to issue, not earlier than six months, or later than one month, before the child ceases to be of school age—

- (a) to the parent of the child, a report of their decision, and
- (b) to the local authority, a report of their decision together with a copy of any document which was taken into account in making the decision.

PART II

(2) For the purpose of obtaining advice as to the carrying out of the duty imposed on them by subsection (1) above in relation to any child, an education authority may—

- (a) invite the parent of the child to submit the child for a medical examination and (if the education authority think it expedient) a psychological examination, and
- (b) if the parent fails to submit the child for any examination on being invited to do so under paragraph (a) above, by notice in writing served upon the parent require him to submit the child for such an examination.

(3) Subsections (2) to (4) of section 64 of this Act (examination of child) shall apply for the purposes of this section as they apply for the purposes of that section, with the substitution, for the references to subsection (1) of that section, of references to subsection (2) of this section, and subject to any other necessary modifications.

(4) This section applies to—

- (a) any child in attendance at a school under the management of the education authority concerned ;
- (b) any child in attendance at a school (other than such a school as is mentioned in paragraph (a) above) in the area of the education authority concerned ;
- (c) any child who is receiving education at a school by virtue of arrangements made by the education authority concerned with the managers of that school."

PART III

ADMINISTRATION AND FINANCE

11. In section 67 of the principal Act (which imposes a duty on the Secretary of State to cause inspection to be made of educational establishments), in subsection (1), for the words "It shall be the duty of the Secretary of State" there shall be substituted the words "The Secretary of State shall have power".

Amendment
of s. 67 of
Education
(Scotland)
Act 1962.

PART III

Power of Secretary of State to make grants to education authorities and others.

12.—(1) For section 75 of the principal Act (application of moneys provided by Parliament for education in Scotland) there shall be substituted the following section:—

“Power of Secretary of State to make grants to education authorities and others.

75. The Secretary of State may out of moneys provided by Parliament apply, in accordance with regulations made by him, such sums as he thinks necessary or expedient for any or all of the following purposes:—

- (a) the payment of grants to education authorities ;
- (b) the payment of grants to universities ;
- (c) the payment of grants to the managers of educational establishments ;
- (d) the payment of grants to any other persons providing education or educational services ;
- (e) the payment of grants to persons to assist the carrying out of educational research ;
- (f) the payment of allowances to or in respect of persons attending courses of education ;
- (g) providing for any other educational expenditure approved by him.”

(2) Notwithstanding the provisions of subsection (1) above, the power conferred on the Secretary of State by section 75(2) of the principal Act (as originally enacted) to make payments to universities out of moneys provided by Parliament shall continue to be available to, and may be exercised by, him until 1st August 1972.

1929 c. 25.

(3) Section 52(3) of, and Schedule 6 to, the Local Government (Scotland) Act 1929, so far as they relate to the payment of moneys to the universities of Scotland, shall cease to have effect.

Abolition of highland schools grant, and compensation therefor.

13.—(1) No payment shall be made under section 77 of the principal Act (highland schools grant) by the Treasury to any education authority after 11th November 1969, and the said section 77 and Schedule 2 to the principal Act shall cease to have effect immediately after that date.

(2) The sums mentioned in Schedule 1 to this Act shall be charged on the Consolidated Fund of the United Kingdom, and the Treasury shall, as soon as practicable after 11th November 1969, pay out of that Fund to the education authority of each education area mentioned in the first column of the said Schedule, by way of compensation for the loss occasioned to that authority by the cessation of payment of grants under the said section 77, the sum shown in the second column of that Schedule opposite to the name of that area.

14. Section 78 of the principal Act (appointment of accountant) and section 80 of that Act (accountant's annual report) shall cease to have effect.

PART III
Repeal of
ss. 78 and 80
of Education
(Scotland)
Act 1962.

15. For section 81 of the principal Act (training of teachers) there shall be substituted the following section:—

“ Power of
Secretary
of State
to make
regulations
with respect
to certain
institutions
providing
further
education.

81.—(1) The Secretary of State may make regulations with respect to grant-aided colleges, and such regulations may—

- (a) make provision with regard to the constitution of the governing bodies of such colleges, and in particular provide that the governing bodies shall be bodies corporate having a common seal ;
- (b) prescribe the general functions to be discharged by the governing bodies, and confer on the governing bodies such powers as the Secretary of State may consider necessary or expedient for the efficient discharge of those functions ;

Power of
Secretary of
State to make
regulations
with respect
to certain
institutions
providing
further
education.

and without prejudice to the generality of the foregoing provisions of this subsection, such regulations may—

- (i) prescribe the administrative and other arrangements to be adopted by the governing bodies for the purpose of discharging their functions and, in particular, provide for the delegation by the governing bodies of such of their functions as may be prescribed in the regulations to persons or bodies of persons to be appointed in such manner as may be so prescribed ;
- (ii) provide for the appointment, remuneration, discipline and dismissal by the governing bodies of administrative, teaching and other staff, and for the payment by the governing bodies of pensions, allowances or gratuities to or in respect of members of such staff on their death or retirement ;
- (iii) make provision with regard to fees and other payments to be made by students in attendance at such colleges ;
- (iv) provide for the constitution of bodies representative of students in attendance at such

PART III

colleges and confer on any such bodies such functions as may be prescribed in the regulations ;

- (v) prescribe the procedure to be followed in cases of alleged breaches of discipline by students in attendance at such colleges.

(2) The Secretary of State may by regulations establish institutions for the provision of any form of further education, and such regulations may make provision with regard to any of the matters mentioned in paragraphs (a) and (b), and paragraphs (i) to (v), of subsection (1) above ; and where any institution established by regulations under this subsection becomes a grant-aided college, those regulations shall continue to apply to that institution until varied or revoked by regulations made under subsection (1) above or subsection (3) below.

(3) The Secretary of State may by regulations dissolve any grant-aided college.

(4) Regulations made under subsection (1) above may—

- (a) apply to all grant-aided colleges, or to certain grant-aided colleges only, or to a single grant-aided college only ;
- (b) make different provision in respect of different classes of grant-aided college or in respect of different grant-aided colleges ;
- (c) vary or revoke the provisions of any enactment (including any regulations made under subsection (2) above), scheme, articles of association, trust deed or other instrument relating to any grant-aided college to which the regulations apply, in so far as those provisions are, in the opinion of the Secretary of State, inconsistent with the regulations ;

and regulations under any of the foregoing provisions of this section may contain such incidental, supplementary and consequential provisions as appear to the Secretary of State to be necessary or expedient.

(5) In this section the expression 'grant-aided college' means a central institution, a college of education or an institution established under subsection (2) above, the managers of which are for the time being receiving grant in respect of that institution or college under section 75(c) of this Act."

16.—(1) Except where his employer otherwise determines, every teacher to whom this section applies and who holds a post of special responsibility shall retire from that post—

PART III
Age of
retirement of
teachers.

(a) on the date on which he attains the age of sixty-five years, or

(b) in the case of a teacher holding such a post at the commencement of this section of this Act who has attained the age of sixty-five years before such commencement, on the date of such commencement,

so, however, that nothing in this subsection shall prevent the employer of a teacher who has, by virtue of this subsection, retired from a post of special responsibility from offering to that teacher, or the teacher from accepting, appointment to another post, not being a post of special responsibility.

(2) Except where his employer otherwise determines, every teacher to whom this section applies shall retire from the post in which he is employed—

(a) on the date on which he attains the age of seventy years, or

(b) in the case of a teacher employed in any post at the commencement of this section of this Act who has attained the age of seventy years before such commencement, on the date of such commencement.

(3) This section applies to every teacher employed by an education authority or by the managers of a grant-aided school, and the references in this section to a post of special responsibility shall be construed as references to a post which attracts a responsibility allowance in terms of the memorandum referred to in an order made by the Secretary of State under section 2(4) of the Remuneration of Teachers (Scotland) Act 1967 and for the time being in force. 1967 c. 36.

(4) This section shall come into force on such date as the Secretary of State may appoint by an order made by statutory instrument.

17. Sections 84 and 87 of the principal Act (retiring allowances, etc.) shall cease to have effect.

Repeal of
ss. 84 and 87
of Education
(Scotland)
Act 1962.

18.—(1) In section 85 of the principal Act (dismissal of teachers), for the word “certificated”, wherever it occurs, there shall be substituted the word “registered”.

Amendment
of s. 85 of
Education
(Scotland)
Act 1962.

(2) Notwithstanding the provisions of subsection (1) above, subsections (1) and (2) of the said section 85 shall after the commencement of this Act continue to apply in relation to

PART III certificated teachers employed in an institution providing any form of further education, but this subsection shall cease to have effect on such date as the Secretary of State may appoint by an order made by statutory instrument.

PART IV

REORGANISATION OF ENDOWMENTS

Schemes for reorganisation of educational endowments: procedure, appeal, making and effect.

19. For sections 125 to 127 of the principal Act (procedure, etc., relating to schemes for reorganisation of educational endowments) there shall be substituted the following sections:—

“ Procedure in preparation of reorganisation schemes.

125.—(1) Before making a scheme for the reorganisation of any educational endowment the Secretary of State shall prepare a draft scheme and shall—

- (a) send copies of the draft scheme to the governing body of the endowment to which it relates ; and
- (b) cause the draft scheme to be published in such manner as he thinks sufficient for giving information to all persons interested in the scheme ;

and the governing body of that endowment or any other person interested in the scheme may, not later than the expiry of the period of one month from the first publication of the draft scheme, send in writing to the Secretary of State objections to the draft scheme, or proposed amendments thereto, or both.

(2) If within the period referred to in subsection (1) above no objection and no proposed amendment to the draft scheme is received by him, the Secretary of State may by statutory instrument make the scheme in the terms of the draft scheme published under subsection (1) above.

(3) If within the said period objections or proposed amendments to the draft scheme are received by him, the Secretary of State shall consider those objections and proposed amendments and may thereafter, if he thinks fit, frame a scheme in such form as he thinks expedient.

(4) If the Secretary of State frames a scheme under subsection (3) above, he shall as soon as practicable thereafter—

- (a) give to the persons who made the objections or, as the case may be, proposed the amendments to the draft scheme notice

PART IV

in writing of his decision with respect to those objections or amendments, together with a statement in writing of the reasons for his decision ;

- (b) send copies of the scheme to the governing body of the endowment to which it relates ;
- (c) cause the scheme to be published in such manner as he thinks sufficient for giving information to all persons interested in the scheme ;
- (d) cause to be published, along with the scheme, a notice—

- (i) stating that, unless not later than the expiry of the period of one month from the first publication of the scheme a petition or appeal is presented to the Court of Session in accordance with the following provisions of this section, the Secretary of State proposes by statutory instrument to make the scheme in the terms in which it has been published, and

- (ii) drawing attention to the provisions of subsection (6) below in such a way as to inform all persons concerned of their right under that subsection to present a petition to the Secretary of State and of the effect of their so doing.

(5) If within the period referred to in paragraph (d)(i) of subsection (4) above no petition or appeal is presented as aforesaid to the Court of Session, or if any petition or appeal so presented is refused by the Court, the Secretary of State may by statutory instrument make the scheme in the terms in which it was published under subsection (4) above.

(6) If within the said period a petition praying that the scheme be laid before Parliament is presented to the Secretary of State by any of the persons mentioned below, the Secretary of State shall lay the statutory instrument containing the scheme before Parliament, and that statutory instrument shall be subject to annulment in pursuance of a resolution of either House thereof.

The persons referred to above are—

- (a) the governing body of the endowment to which the scheme relates,

PART IV

- (b) the town council of any burgh directly affected by the scheme,
- (c) any education authority directly affected by the scheme,
- (d) any ratepayers (not being less than twenty) of any burgh or parish or place directly affected by the scheme,
- (e) any person having a vested interest in the said endowment or any part of it.

(7) If within the said period there is presented to the Court of Session by the governing body of the endowment a petition for amendment of the scheme or for the substitution of a new scheme, the Court may amend the scheme and make it as so amended, or may make a new scheme, and for those purposes the Court of Session shall have the like powers as are conferred by this Part of this Act on the Secretary of State regarding schemes for the future government and management of educational endowments.

(8) If within the said period an appeal is presented to the Court of Session by—

- (a) the governing body of the endowment to which the scheme relates, or any other person directly affected by the scheme, on the ground that the scheme is not within the scope of, or is not made in conformity with, this Part of this Act, or
- (b) any person holding any office, place or employment, or receiving any pension, compensation allowance, bursary or emolument, under or arising out of the endowment to which the scheme relates, on the ground that the scheme does not comply with the provisions of this Part of this Act as to saving or making due compensation for his vested interests,

and the Court of Session decides that the scheme is contrary to law on any of the grounds mentioned in paragraphs (a) and (b) above, the Secretary of State shall not make the scheme but may, if he thinks fit, frame an amended scheme in such form as he thinks expedient, and the provisions of subsections (4) to (7) above, and of this subsection, shall apply

in relation to an amended scheme framed under this subsection as they apply to a scheme framed under subsection (3) above.

(9) Where the Secretary of State causes a draft scheme or a scheme to be published under this section, he shall cause to be prefixed to that draft scheme or scheme a memorandum setting out—

- (a) the reasons why, in his view, the reorganisation of the endowment to which the draft scheme or scheme relates is necessary ;
- (b) the respects in which the draft scheme or scheme involves any substantial alteration of the purposes to which the said endowment is applied or applicable ; and
- (c) the reasons for any such alteration ;

and for the purposes of the provisions of this section relating to publication, that memorandum shall be deemed to be part of the draft scheme or scheme, as the case may be.

Procedure
in prepara-
tion of
reorganisa-
tion
schemes by
Scottish
Universities
Committee
of Privy
Council by
virtue of
s.118(5).

126.—(1) Before making, by virtue of section 118(5) of this Act, a scheme for the reorganisation of any endowment the Scottish Universities Committee of the Privy Council (hereafter in this section called “the Committee”) shall prepare a draft scheme and shall—

- (a) send copies of the draft scheme to the governing body of the endowment to which the draft scheme relates ; and
- (b) cause the draft scheme to be published in such manner as it thinks sufficient for giving information to all persons interested in the scheme ;

and the governing body of that endowment or any other person interested in the scheme may, not later than the expiry of the period of one month from the first publication of the draft scheme, send in writing to the Committee objections to the draft scheme, or proposed amendments thereto, or both.

(2) If within the period referred to in subsection (1) above no objection and no proposed amendment to the draft scheme is received by it, the Committee may make the scheme in the terms of the draft scheme published under that subsection, and it shall be lawful for Her Majesty by Order in Council to approve the scheme so made.

PART IV

(3) If within the said period objections or proposed amendments to the draft scheme are received by it, the Committee shall consider those objections and proposed amendments and may thereafter, if it thinks fit, frame a scheme in such form as it thinks expedient.

(4) If the Committee frames a scheme under subsection (3) above, it shall as soon as practicable thereafter—

- (a) give to the persons who made the objections or, as the case may be, proposed the amendments to the draft scheme notice in writing of its decision with respect to those objections or amendments ;
- (b) send copies of the scheme to the governing body of the endowment to which the scheme relates ;
- (c) cause the scheme to be published in such manner as it thinks sufficient for giving information to all persons interested in the scheme ;
- (d) cause to be published, along with the scheme, a notice—

- (i) stating that, unless not later than the expiry of the period of one month from the first publication of the scheme an appeal is presented to the Court of Session in accordance with the following provisions of this section, the Committee proposes to make the scheme in the terms in which it has been published, and that the scheme when so made may be approved by Her Majesty by Order in Council ; and

- (ii) drawing attention to the provisions of subsection (6) below in such a way as to inform all persons concerned of their right under that subsection to present a petition to the Committee and of the effect of their so doing.

(5) If within the period referred to in paragraph (d)(i) of subsection (4) above no appeal is presented as aforesaid to the Court of Session, or if any appeal so presented is refused by the Court, the

PART IV

Committee may make the scheme in the terms in which it was published under that subsection, and, subject to subsection (6) below, it shall be lawful for Her Majesty by Order in Council to approve the scheme so made.

(6) If within the said period a petition praying that the scheme be laid before Parliament is presented to the Committee by any of the persons mentioned below, the Committee shall cause the scheme to be laid before both Houses of Parliament, and it shall be lawful for Her Majesty, after the scheme has so lain for forty days (in reckoning which period no account is to be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days), by Order in Council to approve the scheme unless within that period either House has resolved that the scheme shall not be proceeded with, in which case no further proceedings shall be taken thereon, without prejudice, however, to the making of a new scheme.

The persons referred to above in relation to a scheme under this section are those mentioned in paragraphs (a) to (e) of section 125(6) of this Act in relation to a scheme under that section.

(7) Subsection (8) of section 125 of this Act shall apply for the purposes of this section as it applies for the purposes of that section, with the substitution, for the references to the Secretary of State and to subsections (4) to (7) and (3) of that section, of references to the Committee and to subsections (4) to (6) and (3) of this section respectively.

(8) Subsection (9) of section 125 of this Act shall apply for the purposes of this section as it applies for the purposes of that section, with the substitution, for the references to the Secretary of State and to that section, of references to the Committee and to this section respectively.

(9) For the purposes of this section, references to an endowment shall be construed as references to a university endowment or the Carnegie Trust and references to the governing body of an endowment shall be construed as references to the founder or the governing body of the university court of any university, with respect to a university endowment, and to the Carnegie Trustees, with respect to the Carnegie Trust.

PART IV
Effect of
schemes.

127.—(1) Any scheme made or approved under the foregoing provisions of this Part of this Act shall come into operation—

(a) except as provided in paragraph (b) below, on the date of the making of the statutory or other instrument containing, or (as the case may be) the Order in Council approving, the scheme ;

(b) in the case of a scheme contained in a statutory instrument laid before Parliament in pursuance of section 125(6) of this Act, on such date as may be specified in that statutory instrument ;

and shall have effect in the same manner as if it had been enacted in this Act, and accordingly, from the said date, any enactment, letters patent, deed, instrument, trust or direction relating to the subject-matter of the scheme, so far as inconsistent with the provisions thereof, shall cease to have effect.

(2) A statutory or other instrument containing a scheme made (otherwise than by the Scottish Universities Committee of the Privy Council), or an Order in Council or other instrument approving a scheme, under this Part of this Act shall be conclusive evidence that that scheme is within the scope of, and was made in conformity with, this Act, and the validity of the scheme shall not be questioned in any legal proceedings whatever."

Schemes for
small
endowments.

20. In section 128 of the principal Act (which provides a shortened procedure for the making of schemes for the reorganisation of educational endowments of an annual value of less than fifty pounds), for the word " fifty " there shall be substituted the words " five hundred ".

PART V

MISCELLANEOUS PROVISIONS

Power of
Secretary of
State to relax
certain
regulations.

21.—(1) If it appears to the Secretary of State, on an application in that behalf made to him—

(a) in relation to regulations made under section 2 or section 19(1) of the principal Act, by an education authority ;

- (b) in relation to regulations made under section 76(1) of the principal Act, by any education authority or other person to whom any grant is payable under that Act

that it is unreasonable that any provision of those regulations should apply in relation to that authority or person or to such educational establishment under the management of that authority or person as may be specified in the application, or should so apply without modification, he may, subject to subsection (2) below, direct that the said provision shall not apply in relation to that authority or person or that educational establishment or, as the case may be, shall so apply subject to such modification as may be specified in the direction.

- (2) A direction under subsection (1) above—

- (a) may be given either unconditionally or subject to such conditions as may be specified in the direction;
- (b) shall not be given in respect of any provision of any regulations which is described in those regulations as not being subject to the giving of a direction under this section;
- (c) may be varied or revoked by a subsequent direction given by the Secretary of State either of his own accord or on the application of the education authority or other person on whose application the original direction was given.

22. In section 137 of the principal Act (power of education authorities to prohibit or restrict employment of children), in subsection (3) (penalties), for the words "five pounds" there shall be substituted the words "twenty pounds" and for the words "twenty pounds" there shall be substituted the words "fifty pounds".

Increase of maximum fines under s. 137 of Education (Scotland) Act 1962.

23. In section 144 of the principal Act (regulations) subsections (2) and (3) shall cease to have effect.

Amendment of s. 144 of Education (Scotland) Act 1962.

PART VI

SUPPLEMENTARY PROVISIONS

24.—(1) Subject to the provisions of this section, any notice required or authorised by the principal Act or this Act to be served or given to any person may be served or given by delivering it to him, or by leaving it at his proper address, or by sending it to him by post.

Notices.

(2) For the purposes of this section and of section 26 of the Interpretation Act 1889 (service by post) in its application to this section, the proper address of a person on or to whom any such notice as aforesaid is to be served or given shall, in the case

1889 c. 63.

PART VI of an education authority, be the address of any office of that authority and, in any other case, be the last known address of the person on or to whom the notice is to be served or given.

(3) Any notice which, in accordance with the provisions of subsection (1) of this section, is left for a person at his proper address shall, unless the contrary is proved, be presumed to have been received by him on the day on which it was left there.

Financial provisions.

25. There shall be paid out of moneys provided by Parliament—

- (a) all sums payable and all expenses incurred by the Secretary of State under this Act, and
- (b) all sums which, in consequence of the provisions of this Act, fall to be paid out of moneys so provided under any other enactment.

Interpretation.
1962 c. 47.

26.—(1) In this Act the expression “the principal Act” means the Education (Scotland) Act 1962.

(2) Except in so far as the context otherwise requires, expressions used in this Act and in the principal Act have the same meaning in this Act as in that Act.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended or extended, and as including a reference thereto as applied, by or under any other enactment including, unless the context otherwise requires, this Act.

Amendments and repeals.

27.—(1) The enactments mentioned in Schedule 2 to this Act shall have effect subject to the amendments specified in that Schedule, being minor amendments and amendments consequential on the provisions of this Act:

Provided that—

- (a) paragraph 7(1) of Part I of that Schedule shall cease to have effect on, and paragraph 7(2) of the said Part I shall not have effect until, 1st August 1970; and
- (b) paragraph 26 of Part I, and paragraph 4 of Part II, of that Schedule shall not have effect until 1st August 1972.

(2) The enactments specified in Schedule 3 to this Act are hereby repealed to the extent specified in relation thereto in the third column of that Schedule:

Provided that—

- (a) the repeal of section 11(2) of the principal Act shall not take effect until 1st August 1970;

- (b) the repeal of section 76(3) of the principal Act and of paragraph 4 of Part I of Schedule 1 to the Local Government (Scotland) Act 1966 shall not take effect until 1st August 1972 ;
- (c) the repeal of section 77 of, and Schedule 2 to, the principal Act shall not take effect until 12th November 1969.

28. The transitional and savings provisions set out in Schedule 4 to this Act shall have effect.

PART VI
1966 c. 51.
Transitional
and savings
provisions.

29.—(1) This Act may be cited as the Education (Scotland) Act 1969, and the Education (Scotland) Acts 1939 to 1967 and this Act may be cited together as the Education (Scotland) Acts 1939 to 1969.

Short title
citation,
commence-
ment and
extent.

(2) Except as provided in sections 16 and 27 of this Act, this Act shall come into force on the expiry of the period of one month beginning with the date on which it is passed.

Any reference in this Act or in any other enactment to the commencement of this Act shall be construed as a reference to the date on which this Act (except section 16 thereof and except as provided in section 27 thereof) comes into force.

(3) This Act shall extend to Scotland only.

SCHEDULES

Section 13.

SCHEDULE 1

SUMS TO BE PAID BY WAY OF COMPENSATION FOR ABOLITION
OF HIGHLAND SCHOOLS GRANT

<i>Serial Number</i>	<i>Education Area</i>	<i>Sum £</i>
1	Argyll	4,942
2	Banff	420
3	Caithness	812
4	Inverness	1,792
5	Orkney	420
6	Perth	868
7	Ross and Cromarty	2,086
8	Sutherland	1,246
		12,586

Section 27.

SCHEDULE 2

MINOR AND CONSEQUENTIAL AMENDMENTS

PART I

1962 c. 47.

AMENDMENT OF THE EDUCATION (SCOTLAND) ACT 1962

1. In section 4 (further education)—

(a) in paragraph (a), for the words “subsection (2) of section one” there shall be substituted the words “section 2”;

(b) for paragraph (c) there shall be substituted the following paragraph:—

“(c) social, cultural and recreative activities and physical education and training, either as part of a course of instruction or as organised voluntary leisure-time occupation; and”.

2. For section 5 (special education) there shall be substituted the following section:—

“Special
education.

5.—(1) In this Act the expression “special education” means education by special methods appropriate to the requirements of pupils whose physical, intellectual, emotional or social development cannot, in the opinion of the education authority, be adequately promoted by ordinary methods of education, and shall be given in special schools or by other appropriate means.

(2) Regulations under section 2 of this Act may prescribe the requirements to be complied with by an education authority in providing special education for their area.”.

3. For section 6 of the principal Act (recreation, etc.) there shall be substituted the following section:—

SCH. 2

"Social activities, physical education, etc.

6.—(1) For the purpose of securing the provision of facilities for social, cultural and recreative activities and physical education and training, an education authority may—

(a) establish, maintain and manage camps, playgrounds, playing fields, gymnasiums, swimming baths, play centres, social and cultural centres and other places at which any such facilities as aforesaid are available;

(b) organise holiday classes, games, expeditions and other activities.

(2) In the exercise of their powers under subsection (1) above an education authority—

(a) may assist any body whose objects include the provision of any such facilities as aforesaid;

(b) shall, so far as practicable, co-operate with local authorities and with any voluntary societies or bodies whose objects include the provision of any such facilities as aforesaid.

(3) In this section the expression 'local authority' means a county, town or district council."

4. In section 7 (provision of educational facilities to be in accordance with schemes)—

(a) in subsection (1), in paragraph (c), for the words "special educational treatment" there shall be substituted the words "special education";

(b) in subsections (4), (6) and (8), for the words "primary and secondary", wherever they occur, and for the words "primary or secondary", wherever they occur, there shall be substituted the word "school".

5. In section 9 (conscience clause), subsection (2) shall cease to have effect.

6. In section 10 (safeguards for religious beliefs), in subsection (2), for the words "subsection (2) of section one" there shall be substituted the words "section 2".

7.—(1) In section 11 (provision of books, etc., free of charge), in subsection (1), for the words "in accordance with subsection (3) of section one of this Act" there shall be substituted the words "by virtue of arrangements made by the authority with the managers of those schools".

(2) In section 11—

(a) in subsection (1), for the words from "are given" to "books" there shall be substituted the following words:—

"(a) are in attendance at schools or junior colleges under their management, or

(b) are receiving free education at other schools by virtue of arrangements made by the education authority with the managers of those schools,

SCH. 2

books”;

(b) subsection (2) shall cease to have effect;

(c) in subsection (3), for the words from “training” to the end there shall be substituted the words “education or training provided by the authority under section 1(3) of this Act, articles of clothing suitable for such physical education or training.”.

8. In section 12 (county library service)—

(a) in subsection (1), after the word “books” there shall be inserted the words “and other printed matter, pictures, gramophone records, tape recordings, films and other materials”;

(b) in subsection (2), after the word “may” there shall be inserted the following words:—

“(a) make such arrangements as they consider necessary for the management of a library service provided by them, including the accommodation and distribution of books and other materials, and

(b)”.

9. In section 14 (provision of education elsewhere than at an educational establishment), the words “with the approval of the Secretary of State” shall cease to have effect.

10. In section 15 (transfer of endowed schools to education authorities)—

(a) in subsection (1), the words “extending over at least three years”, wherever they occur, shall cease to have effect;

(b) subsection (2) shall cease to have effect.

11. In section 18 (improvements as to premises of educational establishments for the safety of pupils)—

(a) in subsection (1), the words “and with the approval of the Secretary of State” shall cease to have effect;

(b) in subsection (3), in the proviso, for the words “or shall satisfy the Secretary of State that” there shall be substituted the word “unless”.

12. In section 19 (requirements as to premises of educational establishments)—

(a) subsection (2) shall cease to have effect;

(b) for subsection (3) there shall be substituted the following subsection:—

“(3) It shall be the duty of an education authority to secure that the premises and equipment of any educational establishment under their management conform to the standards and requirements applicable to that establishment and, in particular, that the premises and equipment of all educational establishments under their management are maintained in such a condition as to conduce to the good health and safety of all persons occupying or frequenting the premises or using the equipment.”;

(c) for subsection (4) there shall be substituted the following subsection—

SCH. 2

“(4) Where the premises or equipment of any educational establishment under the management of an education authority do not conform to the standards or requirements applicable to that establishment or are not maintained as mentioned in subsection (3) above, the Secretary of State may, after consultation with the authority, direct that the premises or equipment be brought into conformity with the said standards or requirements or into the state of maintenance mentioned in that subsection (as the case may be) within a period to be specified in the direction; and it shall thereupon be the duty of the authority to comply with the direction.”;

(d) subsection (5) shall cease to have effect.

13. In section 20 (acquisition of land and execution of works), in subsection (1), after the word “may” there shall be inserted the words “subject to the provisions of subsection (1A) below,”.

14. In section 24 (provision by education authority for education of pupils belonging to other areas)—

(a) in subsection (1), for the words “primary, secondary” there shall be substituted the words “school education”;

(b) in subsections (2) and (3), for the words “primary or secondary”, wherever they occur, there shall be substituted the word “school”;

(c) in subsection (4), for the words “for the primary or secondary education of” there shall be substituted the words “school education for”;

(d) subsection (5) shall cease to have effect.

15. In section 28 (educational conferences), the words “Subject to any regulations made by the Secretary of State” shall cease to have effect.

16. In section 32 (school age), in subsection (4), for the words from “section fifty-five” to “treatment” there shall be substituted the words “the Act of 1946 or this Act that a child requires special education”, and for the word “rescinded” there shall be substituted the word “revoked”.

17. In section 35 (failure by parent to secure regular attendance by his child at a public school), subsection (2) shall cease to have effect.

18. In section 38 (attendance orders)—

(a) in subsection (1), for the words “being a school” there shall be substituted the words “being either a public school or a school (other than a public school)”;

(b) in subsection (2), in paragraph (b), for the words from “a certificate” to the end there shall be substituted the words “the education authority have decided under the Act of 1946 or this Act that the child requires special education.”.

SCH. 2

19. In section 40 (period of operation of attendance orders), in the proviso, for the words from "certificate" to "withdrawn" there shall be substituted the words "decision of an education authority under the Act of 1946 or this Act that a child requires special education is revoked".

20. In section 49 (power of education authorities to assist persons to take advantage of educational facilities)—

(a) for the words "primary or secondary", wherever they occur, there shall be substituted the word "school";

(b) in subsection (1), for the words "Great Britain", wherever they occur, there shall be substituted the word "Scotland".

21. In section 50 (education of pupils in exceptional circumstances), in subsection (1), for the words "primary or secondary", wherever they occur, there shall be substituted the word "school".

22. In section 54 (provision of clothing for pupils at public schools), in subsection (4), in paragraph (b), for the words "special educational treatment" there shall be substituted the words "special education".

23. For section 57 (regulations as to medical examination and inspection) there shall be substituted the following section:—

"Regulations 57. The Secretary of State may make regulations as to medical and dental examination and inspection. to the conduct of medical and dental examinations and medical and dental inspections for the purposes of this Act, and such regulations may, in particular, prescribe the special qualifications or experience to be possessed by—

(a) the medical or (as the case may be) dental practitioners by whom any class of examination may be conducted,

(b) the persons who may assist in the conduct of any such examinations,

(c) the medical practitioners by whom or under whose directions any class of medical inspection may be conducted,

(d) the dental practitioners by whom any class of dental inspection may be conducted."

24. In section 58 (medical inspection, etc., of pupils)—

(a) in subsection (1), the words "or junior college" shall cease to have effect, and after the words "persons in attendance at any" there shall be inserted the words "junior college or";

(b) in subsection (2), after the word "pupils" there shall be inserted the words "and young persons", and after the word "duty" there shall be inserted the words "under this section".

25. In section 60 (provisions supplementary to school health provisions)—

(a) in subsection (2), the words "primary or secondary" shall cease to have effect, and after the word "dental" there shall be inserted the words "inspection, supervision and";

SCH. 2

(b) in subsection (3), after the word "medical", in the first place where it occurs, there shall be inserted the words "and dental";

(c) in subsection (4), after the word "dental" there shall be inserted the words "examination, inspection, supervision and".

26. In section 76 (payment of grants to be subject to conditions), subsection (3) shall cease to have effect.

27. In section 79 (examination of accounts), for the words "and report to the accountant" there shall be substituted the words "to the Secretary of State".

28. In section 85 (dismissal of teachers)—

(a) in subsection (1), for the words "first class service or of first class service and second class service" there shall be substituted the words "reckonable service or of reckonable service and external service";

(b) subsection (5)(b) shall cease to have effect.

29. In section 91 (incidental expenses of education authorities)—

(a) in subsection (1), for the word "duties" there shall be substituted the word "functions";

(b) in subsection (2), at the end there shall be inserted the following paragraph:—

"(d) expenses incurred by the parent of any child in connection with any medical or dental inspection, or any medical or psychological examination, of that child, or by any young person in connection with any medical or dental inspection of that young person, under any provision of this Act."

30. Section 94 (education authorities to administer revenues of endowments applicable to bursaries) shall cease to have effect.

31. In section 97 (returns by registrars)—

(a) in subsection (1), after the words "education authority" there shall be inserted the words "on a form to be provided by the authority";

(b) subsection (2) shall cease to have effect.

32. Section 98 (service of notices) shall cease to have effect.

33. In section 118 (schemes for reorganisation of educational endowments), in subsection (5), for the words "so, however" to the end there shall be substituted the words "and—

(a) except as mentioned in paragraph (b) below, the provisions of this Part of this Act shall, with any necessary modifications, apply for that purpose;

(b) section 126 of this Act shall apply in place of section 125 thereof in relation to the procedure to be followed by the Scottish Universities Committee in preparing a scheme under this Part of this Act."

34. In section 123 (provisions as to beneficiaries and teachers), in subsection (2), for the word "certificated", in both places where it occurs, there shall be substituted the word "registered".

SCH. 2

35. In section 124 (accounts and audit of educational endowments)—

(a) in subsection (3), the words “ of the Secretary of State, or ” shall cease to have effect, and at the end there shall be inserted the words “ and no person shall be qualified to be appointed auditor as aforesaid unless he is a member of one or more of the following bodies :—

(a) the Institute of Chartered Accountants of Scotland ;

(b) the Institute of Chartered Accountants in England and Wales ;

(c) the Association of Certified and Corporate Accountants ;

(d) the Institute of Chartered Accountants in Ireland ;

(e) any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of section 161(1)(a) of the Companies Act 1948 by the Board of Trade ;

but a Scottish firm may be so appointed if each of the partners therein is qualified to be so appointed.” ;

(b) in subsections (4) and (5), for the word “ accountant ”, wherever it occurs, there shall be substituted the words “ Secretary of State ” ;

(c) subsection (6) shall cease to have effect ;

(d) in subsection (7), for the words from the beginning to “ such accounts ” there shall be substituted the words “ The Registrar of Educational Endowments shall make the audited accounts of every endowment to which this section applies ”.

1948 c. 38.

36. In section 128 (schemes for small endowments), for the words “ approved by Order in Council under this Part of this Act ” there shall be substituted the words “ made under section 125 of this Act ”.

37. In section 129 (amending schemes), for the words “ framed and ” there shall be substituted the words “ made or ”, and after the words “ any scheme ” there shall be inserted the words “ made or ”.

38. In section 133 (default of governing body)—

(a) after the words “ any scheme ” there shall be inserted the words “ made or ” ;

(b) for the words “ without undue delay ” there shall be substituted the words “ within such time as may be specified in the requisition ”.

39. In section 135 (interpretation of Part VI)—

(a) in subsection (1), after paragraph (a) there shall be inserted the following paragraph :—

“(aa) the expression ‘ charitable purposes ’ shall be construed in the same way as if it were contained in the Income Tax Acts ;” ;

- (b) in subsection (1), for paragraph (c) there shall be substituted the following paragraph:—

SCH. 2

“(c) ‘Educational purposes’ includes—

- (i) payments towards the cost of professional training and apprenticeship fees,
- (ii) the provision of maintenance, clothing and other benefits, and
- (iii) the payment of grants for travel ;” ;

- (c) after subsection (2) there shall be inserted the following subsection:—

“(3) Any reference in this Act to the endowment to which a scheme under this Part of this Act relates shall, in the case of a scheme relating to more than one endowment, be construed as a reference to every endowment, or (as the context may require) to any endowment, to which the scheme relates.”.

40. In section 141 (saving as to persons suffering from mental disorder), in subsection (2), for paragraph (b) there shall be substituted the following paragraph:—

- “(b) any child who is for the time being the subject of a report issued by an education authority under the Act of 1946 or this Act to the effect that they have decided that the child is suffering from a disability of such a nature or to such an extent as to make him unsuitable for education or training either by ordinary methods of education or by special education ; and”.

41. In section 145 (general definitions)—

- (a) paragraph (1) shall cease to have effect ;

- (b) in paragraph (11), for the words “subsection (2) of section seventy-seven of the Act of 1946 or section eighty-one of” there shall be substituted the words “the Act of 1946 or” ;

- (c) for paragraph (14) there shall be substituted the following paragraph:—

“(14) ‘College of education’ means an educational establishment in which further education is provided and the primary purpose of which is the education and training of teachers ;” ;

- (d) after paragraph (15) there shall be inserted the following paragraphs:—

“(15A) ‘Dental examination’ means examination by a registered dentist, so however that in conducting an examination of any such class as may be prescribed, such dentist may be assisted by other persons having such special qualifications or experience as may be prescribed ;

(15B) ‘Dental inspection’ and ‘dental supervision’ mean, respectively, inspection and supervision by a registered dentist ;

SCH. 2

(15C) 'Dental treatment' includes prevention and treatment of dental diseases by or (so far as permitted by law) under the direction of any registered dentist, and the supply of appliances on the recommendation of such dentist, but does not, in relation to any pupil other than a pupil receiving school education elsewhere than at school under arrangements made by an education authority under section 14 of this Act, include treatment in that pupil's home;";

(e) in paragraph (17), for the words from "or organising" to "Act" there shall be substituted the words "for social, cultural or recreative activities or for physical education or training,";

(f) after paragraph (19) there shall be inserted the following paragraph:—

"(19A) 'Enactment' includes an order, regulation, rule or other instrument having effect by virtue of an Act;";

(g) in paragraph (21), the words "facilities described in subsection (4) of section one and the" and the word "both" shall cease to have effect;

(h) in paragraph (22), for the words "managers' contributions under Part IV of this Act" there shall be substituted the words "employers' contributions under the Teachers Superannuation (Scotland) Act 1968";

(i) in paragraph (28), the words "or in appropriate cases by a person registered under the Dentists Act 1957" shall cease to have effect;

(j) in paragraph (30), for the words "primary or secondary" there shall be substituted the word "school";

(k) in paragraph (31), for the words "paragraph (a) of subsection (2) of section two" there shall be substituted the words "section 1(2)(a)(i)";

(l) in paragraph (35), the words "except in Part IV of this Act" shall cease to have effect;

(m) in paragraph (36), for the words "subsection (2) of section two of this Act" there shall be substituted the words "section 1(2)(a) of the Education (Scotland) Act 1969";

(n) after paragraph (38) there shall be inserted the following paragraph:—

"(38A) 'Psychological examination' means an examination by an educational or clinical psychologist appointed by an education authority for the purpose;";

(o) after paragraph (41) there shall be inserted the following paragraph:—

"(41A) 'Registered teacher' means a teacher registered under the Teaching Council (Scotland) Act 1965;";

(p) after paragraph (43) there shall be inserted the following paragraph:—

"(43A) 'School education' has the meaning assigned to it by section 1(2) of this Act;";

1968 c. 12.

1957 c. 28.

1965 c. 19.

- (q) in paragraph (44), for the words "subsection (2) of section three of this Act" there shall be substituted the words "section 1(2)(b) of the Education (Scotland) Act 1969";
- (r) in paragraph (45), for the words "Special educational treatment" there shall be substituted the words "Special education";
- (s) for paragraph (48) there shall be substituted the following paragraph:—
- “(48) ‘Teachers (Superannuation) Regulations’ means regulations made under the Teachers Superannuation 1968 c. 12. (Scotland) Act 1968;”.

SCH. 2

PART II

AMENDMENT OF OTHER ENACTMENTS

The Physical Training and Recreation Act 1937

1937 c. 46.

1. In section 10 (application to Scotland), after subsection (5) there shall be inserted the following subsection:—

“(5A) Section 4 of this Act shall have effect as if in subsection (4) after the words ‘another local authority’ there were inserted the words ‘or by an education authority within the meaning of the Education (Scotland) Act 1962’.”.

1962 c. 47.

The Teaching Council (Scotland) Act 1965

1965 c. 19.

2. In section 7—

- (a) in subsection (5), for the words “section 144(2) of the Act of 1962” there shall be substituted the words “subsection (8A) of this section”;
- (b) in subsection (7), for the words “section 144(2) of the Act of 1962” there shall be substituted the words “subsection (8A) of this section”;
- (c) in subsection (8), for the words from the beginning to “thereof” there shall be substituted the words “Subsections (1), (4) and (5) of section 144 of the Act of 1962”, and for the words “it applies” there shall be substituted the words “they apply”;
- (d) after subsection (8) there shall be inserted the following subsection:—

“(8A) The Secretary of State shall, not less than forty days before making regulations under this section, cause a draft of the regulations to be published and send a copy thereof to every education authority, and shall have regard to any representations made by an education authority or by any person interested before he makes the regulations; and the regulations may be made in the same form as in the published draft or in an amended form.”.

3. Section 16 (amendment of Education (Scotland) Act 1962) shall cease to have effect.

The Local Government (Scotland) Act 1966

1966 c. 51.

4. In Schedule 1 (rate support grants), in Part I, paragraph 4 shall cease to have effect.

SCH. 2

1968 c. 49.

The Social Work (Scotland) Act 1968

5. In section 30 (definition of child for Part III), in subsection (1), at the end there shall be inserted the following words:—

“and for the purposes of the application of this Part of this Act to a person who has failed to attend school regularly without reasonable excuse includes a person who is over the age of sixteen years but who is not over school age.”.

6. In Schedule 8, for paragraph 61 there shall be substituted the following paragraph:—

“61. In section 36(3), for the words from ‘if satisfied’ to the end of the subsection there shall be substituted the words—

‘refer the child to the reporter of the appropriate local authority.

In this subsection the expression “local authority” has the same meaning as in the Social Work (Scotland) Act 1968.’.”.

7. In Schedule 8, for sub-paragraph (1) of paragraph 62 there shall be substituted the following sub-paragraph:—

“(1) In section 44(1), for the words from ‘that the child be brought’ to the end of the subsection there shall be substituted the words—

‘that the case be referred to the reporter of the appropriate local authority and, if so referred, shall certify the said failure as a ground established for the purposes of Part III of the Social Work (Scotland) Act 1968.

In this subsection the expression “local authority” has the same meaning as in the said Act of 1968.’.”.

8. In Schedule 8, paragraphs 63 and 64 shall cease to have effect.

9. In Schedule 8, for paragraph 65 there shall be substituted the following paragraph:—

“65. In section 85, in subsection (5), for paragraph (c) there shall be substituted the following paragraph:—

‘(c) the persons responsible for the management of an establishment or residential establishment within the meaning of the Social Work (Scotland) Act 1968 and the registered teachers employed therein in the provision of school education.’.”.

10. In Schedule 8, in paragraph 67, for the words from the beginning to the end of head (b) there shall be substituted the following words:—

“In section 145—

(a) after definition (41A) there shall be inserted—

‘(41B) “residential establishment” has the same meaning as in the Social Work (Scotland) Act 1968 ;’;

(b) in definition (42), for the words ‘an approved school within the meaning of the Act of 1937’ there shall be substituted the words ‘an establishment or residential establishment within the meaning of the Social Work (Scotland) Act 1968.’ ;”.

SCHEDULE 3

Section 27.

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
19 & 20 Geo. 5. c. 25.	The Local Government (Scotland) Act 1929.	Section 52(3) and Schedule 6, so far as those provisions relate to the payment of moneys to the universities of Scotland.
10 & 11 Eliz. 2. c. 47.	The Education (Scotland) Act 1962.	In section 9, subsection (2). In section 11, subsection (2). In section 14, the words "with the approval of the Secretary of State". In section 15, in subsection (1), the words "extending over at least three years", wherever they occur, and subsection (2). In section 18, in subsection (1), the words "and with the approval of the Secretary of State". In section 19, subsections (2) and (5). In section 24, subsection (5). In section 28, the words "Subject to any regulations made by the Secretary of State". In section 35, subsection (2). In section 58, in subsection (1), the words "or junior college". In section 60, in subsection (2), the words "primary or secondary". In section 76, subsection (3). Section 77. Section 78. Section 80. Section 84. In section 85, in subsection (5), paragraph (b). Section 87. Section 94. In section 97, subsection (2). Section 98. In section 119, subsection (3), in so far as it relates to land forming the site of an educational establishment under the management of an education authority. In section 124, in subsection (3), the words "of the Secretary of State, or", and subsection (6). In section 144, subsections (2) and (3).

SCH. 3

Chapter	Short Title	Extent of Repeal
10 & 11 Eliz. 2. c. 47.— <i>cont.</i>	The Education (Scotland) Act 1962— <i>cont.</i>	In section 145— paragraph (1), in paragraph (21), the words “ facilities described in sub- section (4) of section one and the ” and the word “ both ”, in paragraph (28), the words “ or in appropriate cases by a person registered under the Dentists Act 1957 ”, in paragraph (35), the words “ except in Part IV of this Act ”. Schedule 2. Section 16.
1965 c. 19.	The Teaching Council (Scotland) Act 1965.	
1966 c. 51.	The Local Government (Scotland) Act 1966.	In Schedule 1, in Part I, paragraph 4.
1968 c. 49.	The Social Work (Scot- land) Act 1968.	In Schedule 8, paragraphs 63 and 64.

Section 28.

SCHEDULE 4

TRANSITIONAL AND SAVINGS PROVISIONS

General

1. In this Schedule “ an original provision ” means any provision of the principal Act as in force immediately before the commencement of this Act, and “ a new provision ” means any provision of the principal Act as amended by or set out in this Act.

2. Any regulations, scheme or other instrument or any decision made, direction or notice given, report issued or other thing done, or deemed to have been made, given, issued or done, under or for the purposes of an original provision and in force at the commencement of this Act shall, in so far as it could have been made, given, issued or done under or for the purposes of a new provision, continue in force and be deemed to have been made, given, issued or done under or for the purposes of that new provision.

3. So much of any enactment or other document as refers expressly or by implication to an original provision shall, in so far as the context permits and as may be necessary to preserve the effect of the said enactment or other document, be construed as referring, or (as the case may require) as including a reference, to any new provision which corresponds to that original provision.

4. Any reference in any provision of this Act (including any new provision) to, or to things done or falling to be done under, a new provision shall, in so far as the context permits, be construed as including, in relation to times, circumstances and purposes in relation to which an original provision had effect, a reference to, or to things done or falling to be done under, that original provision.

School leaving dates

SCH. 4

5.—(1) Any date fixed before the commencement of this Act under proviso (i) to section 33(1) of the principal Act and in force at the commencement of this Act shall be deemed to have been fixed under proviso (ii) to the said section 33(1) as set out in this Act.

(2) Any date fixed before the commencement of this Act under proviso (ii) to the said section 33(1) and in force at the commencement of this Act shall have effect until a new date or dates is or are fixed under the said section 33(1) as amended by this Act.

Handicapped children

6. Any reference in any enactment or other instrument passed or made before the commencement of this Act to special educational treatment shall be construed as a reference to special education, and any reference in any such enactment or other instrument to a child who is suffering from a disability of mind of such a nature or to such an extent as to make him unsuitable for education or training in a special school shall be construed as a reference to a child who is suffering from a disability of such a nature or to such an extent as to make him unsuitable for education or training either by ordinary methods of education or by special education.

7.—(1) Any decision made before the commencement of this Act by an education authority—

- (a) to the effect that a child requires special educational treatment, or
- (b) to the effect that a child is suffering from a disability of mind of such a nature or to such an extent as to make him incapable of receiving education or training in a special school or as to make it inexpedient that he should be educated or trained in association with other children either in his own interests or in those of the other children, or that a child is suffering from a disability of mind of such a nature or to such an extent as to make him unsuitable for education or training in a special school,

and any report of any such decision as is mentioned in head (b) above issued by an education authority to a local health authority before such commencement, being a decision made or a report issued under the Education (Scotland) Act 1946 or under the principal Act as in force immediately before such commencement, and in force at such commencement, shall, subject to paragraph 8 below, continue in force and be deemed to be—

- (i) in the case of such a decision as is mentioned in head (a) above, a decision under section 65 of the principal Act as set out in this Act to the effect that the child requires special education, being a decision duly notified to the parent of the child under paragraph (i) of subsection (1) of that section ;
- (ii) in the case of any such decision as is mentioned in head (b) above, a decision under section 66B of the principal Act

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as set out in this Act to the effect that the child is suffering from a disability of such a nature or to such an extent as to make him unsuitable for education or training either by ordinary methods of education or by special education ;

- (iii) in the case of any such report as aforesaid, a report of a decision under the said section 66B as so set out issued by the education authority to the local authority ;

but so however that section 66A of the principal Act as set out in this Act shall not (except in so far as it relates to a determination under section 66 of the principal Act as so set out) apply in relation to a decision deemed by virtue of paragraph (i) above to be a decision under section 65 of the principal Act as so set out.

1968 c. 49.

(2) In this paragraph the expression "local authority" shall have the same meaning as in the Social Work (Scotland) Act 1968 :

1947 c. 27.

Provided that until section 1(4) of the said Act of 1968 comes into operation the expression "local authority" shall mean a local health authority within the meaning of the National Health Service (Scotland) Act 1947 (including a joint committee or board constituted under section 20 of that Act).

8. Where immediately before the commencement of this Act there is pending—

- (a) a reference to the Secretary of State under section 64(2) of the principal Act, or
- (b) an appeal to the sheriff under section 64(4) of that Act, or
- (c) a review of a decision of an education authority under section 65(4) of that Act, or
- (d) an appeal to the Secretary of State under section 65(6) of that Act,

any such reference, appeal or review may be proceeded with in accordance with the provisions of the principal Act as if this Act had not been passed.

Educational endowments

9. Any scheme for the reorganisation of an educational endowment approved by Order in Council, or amended or framed by the Court of Session, under section 125 or section 127 of the principal Act before the commencement of this Act and in force at such commencement shall continue in force and have effect as if made or approved under the corresponding provision of Part VI of the principal Act as set out in this Act.

10. Where before the commencement of this Act the Secretary of State or the Scottish Universities Committee of the Privy Council has prepared the draft of a scheme for the reorganisation of any educational endowment in pursuance of section 125(2) of the principal Act, such scheme may be proceeded with in accordance with the provisions of the principal Act as if this Act had not been passed.

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11. The repeal by this Act of sections 84 and 87 of the principal Act shall not affect the payment after the commencement of this Act of any pension, gratuity or retiring allowance which was payable immediately before such commencement under either of the said sections.

12. The repeal by this Act of section 94 of the principal Act shall not affect the application of that section to any part of the annual revenue of any scheme, being a part to which that section applied immediately before the commencement of this Act.